

11th Legislature



PASS
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9-16-94

Bill No. 11-013

An Act to Establish Future Citizenship & Loss of Citizenship Ordinances, Rules & Regulations of the Chickasaw Nation.

IN THE CHICKASAW TRIBAL LEGISLATURE

Introduced by the Citizenship Committee of the Tribal Legislature: The Honorable Jesse Lynch, Chair, and the Honorable Mevelyn Kirkpatrick, Lisa Shephard and Tim Colbert, Members.

A BILL

BE IT ENACTED by the Tribal Legislature of the Chickasaw Nation, assembled, to establish Future Citizenship Ordinances & Loss of Citizenship Ordinances, Rules & Regulations in accordance with Article II of the Constitution of the Chickasaw Nation, to be called "The Chickasaw Nation Citizenship Act of 1994", to wit:

SECTION 1. AUTHORITY

(A) The Chickasaw Nation Citizenship Act of 1994 is authorized by Section 2, Article II, of the Constitution of the Chickasaw Nation and deals, strictly, with rights and procedures for future citizenship and loss citizenship not, specifically, addressed by Section 1, Article II, of the Constitution of the Chickasaw Nation.

SECTION 2. DEFINITIONS

(A) Words and phrases as used herein, shall be defined as follows:

(1) "The Chickasaw Nation" means the Government of the Chickasaw Nation and all Chickasaw Indians by blood whose names appear on the final rolls of the Chickasaw Nation as approved pursuant to Section 2 of the Act of April 26, 1906, (34 Stat. 137), and their lineal descendants as stated in Section 1, Article II of the Constitution of the Chickasaw Nation,

(2) "Constitution" means the Constitution of the Chickasaw Nation as ratified by the qualified electors of the Chickasaw Nation on August 27, 1983,

This legislation, as Constitutionally approved, shall now be styled as TRIBAL LAW 11-014.

(3) "Chickasaw Citizen" means one who is listed as a Chickasaw on the final rolls of the Chickasaw Nation as approved pursuant to the Act of April 26, 1906, (34 Stat. 137) and their lineal descendants, and others who meet the requirements for citizenship contained in this Act, who are, subsequently, granted citizenship in the Chickasaw Nation.

SECTION 3. QUALIFICATION OF FUTURE CITIZENSHIP

(A) A native born Chickasaw citizen who can show that at least one of his or her natural parents is a Chickasaw as defined by the Constitution of the Chickasaw Nation is eligible for Citizenship, and, upon reaching lawful age, is eligible to register to vote in all elections of the Chickasaw Nation. Adoption of such native born Chickasaw citizens by others, whether Chickasaw or not, shall not alter the Chickasaw citizenship eligibility of such native born Chickasaw.

(B) All persons who can show that they are lineal descendants of Chickasaw Indians by blood who are listed on the final rolls of the Chickasaw Nation, pursuant to the Act of 1906, are eligible for citizenship in the Chickasaw Nation as are their lineal descendants.

(C) Adopted persons of a qualified Chickasaw citizen, who do not meet the qualifications of (A) or (B), may apply for citizenship in the Chickasaw Nation, subject to the provisions contained in this Act.

(D) All other persons claiming citizenship in the Chickasaw Nation who do not meet any of the qualifications of (A), (B), or (C) may apply for citizenship in the Chickasaw Nation, subject to the provisions contained in this Act.

SECTION 4. QUALIFICATION FOR CITIZENSHIP OF CHICKASAW/MIXED-BLOOD

Any person who applies for citizenship who otherwise qualifies for citizenship, but who has been enrolled as a citizen of another Indian tribe or tribes, may become a citizen of the Chickasaw Nation; provided that person has not shared in any benefits of land or money as a citizen or member of another tribe or tribes; and, provided, further, that such person shall relinquish, in writing, such citizenship or membership in the other Indian tribe or tribes and file such writing with the office of Tribal Registration.

SECTION 5. RIGHTS OF CITIZENSHIP

All Chickasaw citizens shall be entitled to all rights and privileges of citizenship subject to the provisions of the Constitution of the Chickasaw Nation, its body of laws, and the declarations of the tribal courts. Citizenship in the Chickasaw Nation does not establish any rights to a Certificate of Degree of Indian Blood identification card nor does it imply any additional rights or limitation of rights a Chickasaw citizen may or may not have under Federal or State laws. Chickasaw Citizenship rights are not the same rights as those of a holder of a Certificate of Degree of Indian Blood (CDIB) card.

SECTION 6. DOCUMENTATION OF CITIZENSHIP

(A) All persons who are considered citizens of the Chickasaw Nation when this law goes into effect, shall not be disputed as citizens of the Chickasaw Nation.

(B) When documentation is required to prove citizenship, the order of importance of the documentation shall be: First, the rolls of the Chickasaw Nation; Second, birth, marriage and death documents that tie directly to the rolls of the Chickasaw Nation; Third, sworn and signed affidavits from undisputed Chickasaw citizens; and, Fourth, any such other documentation as may be required by Tribal Registration or the Tribal Court, subject to the provisions contained in this Act.

(C) A person who disputes the lineal descendency of another person, must petition a tribal court of the Chickasaw Nation to request a hearing, subject to the provisions of this Act.

SECTION 7. APPLICATIONS FOR CITIZENSHIP

(A) All persons who seek citizenship in the Chickasaw Nation must file an application for citizenship. Applications for minors or incompetents may be filed by parents, guardians, or other sponsors such as social workers. No one will be considered for citizenship unless an application has been filed by the individual, parent, guardian, or other sponsor.

(B) All applications for citizenship must be filed with the office of Tribal Registration on a form provided by Tribal Registration for that purpose.

(1) The period in which applications for citizenship will be accepted shall be open and continuous unless or until the Chickasaw Tribal Legislature sets a deadline date.

(2) By legislative action of the Tribal Legislature, a deadline or cut-off date may be set for specific purposes that affect benefits to current citizens and applicants up to such date, but does not provide for applicants after such date. No such applications shall be accepted by Tribal Registration unless and until the Chickasaw Tribal Legislature rescinds such deadline or cut-off date.

(C) Each application for citizenship must be completed, in its entirety, and must contain sufficient personal information and documentation to properly determine the applicant's eligibility for citizenship. Applications must show the following:

- (1) All names by which the applicant is known.
- (2) The applicant's complete street address and mailing address.
- (3) The applicant's degree of Chickasaw Blood (if known).
- (4) The names of all Chickasaw Indian ancestors whose name appears on the rolls of the Chickasaw Nation as of the date of the application.
- (5) The name or names and degree or degrees of Indian blood of other Indian tribes with which the applicant associates, and the applicant's legal status with such Indian tribe or tribes.
- (6) The signature of the applicant, parent, guardian or other sponsor.
- (7) The date of the filing of the application.

(D) The application must be accompanied by the original or certified copy of the applicant's birth certificate or other legal evidence of applicant's birth, and any other documentary evidence to support applicant's claim for citizenship. All documentation will be photocopied by Tribal Registration and the originals returned to the applicant. The photocopied documentation done by Tribal Registration, shall be attached to and retained with the application, for further processing.

SECTION 8. PROCESSING OF THE APPLICATION

(A) Tribal Registration shall assign a person or persons who shall be responsible for the processing of applications, and performed under the following guidelines:

- (1) Date-stamp the application form with the date it is filed by the applicant, and sign such date-stamp in acknowledgment of receipt of the application.
- (2) Prepare a folder for the application and documentation.
- (3) Verify that the application is complete or notify the applicant in writing, that it is not complete and giving the applicant 30 days in which to provide the required information.
- (4) Confirm whether the applicant is a citizen or member of another or other Indian tribe or tribes and what degree, if any, of Indian blood the applicant has in such other Indian tribe or tribes and document it to the applicant's file.
- (5) If possible, from the documentation provided by the applicant, determine applicant's degree of Chickasaw blood, and document it to the applicant's file.
- (6) Separate applications into two categories:
 - (a) Properly documented applicants who appear to be lineal descendants of Chickasaw citizens, or who may possess other qualifications for citizenship consideration.
 - (b) Applicants who do not appear to meet the requirements or who do not have adequate documentation to warrant citizenship consideration.
- (7) Complete citizenship processing for those applicants in (6), (a), above in accordance with this Act.
- (8) Notify, in writing, to those applicants in (6), (b), that they do not and why they do not meet the requirements for citizenship in the Chickasaw Nation. Rejected applicants shall, also, be notified that they have 30 days from the date of the written notice of rejection to file a petition to the Chickasaw Tribal Court to request a hearing on their application. The rejected applicant shall be informed in the written notice of rejection that the granting of a hearing before the Tribal Court is, solely, at the discretion of the Chickasaw Tribal Court.

SECTION 9. ACTIONS OF TRIBAL REGISTRATION ON REJECTED APPLICANTS

(A) The Tribal Registration office shall forward to the Clerk of the Tribal Court, a copy of each rejected applicant's file with a copy of the written notice of rejection that was sent to the applicant.

(B) The Tribal Registration office is required to maintain the files of rejected applicants for at least one (1) year from the date of rejection.

SECTION 10. ACTIONS OF THE TRIBAL COURT

(A) The Chickasaw Tribal Court shall maintain a file of all rejected applicants for Chickasaw citizenship for 30 days, pending possible requests for hearings by rejected applicants. At the end of the 30 day grace period, the Clerk of the Tribal Court shall certify to the office of Tribal Registration the name of those rejected applicants who have not petitioned the Tribal Court for a hearing on their rejected application and those rejected applications on which the Tribal Court has granted a hearing and the date of such hearing.

(B) The Tribal Court, at their discretion, may dispose of any file on a rejected applicant who has failed to file a petition for a hearing before the court within the 30 day grace period, or those rejected applicants who have been denied a hearing and who do not have any other avenue of appeal from the Tribal Court.

(C) The Tribal Court shall maintain the rejected applicants' files in all cases concerning those files that are pending before the Tribal Court, until ultimate disposition of the cases concerning those files is determined.

SECTION 11. EFFECTS OF DECISIONS

(A) The decision of Tribal Registration on accepted or rejected applicants, upon conclusion of the 30 day grace period; and, provided, that, in the case of rejected applicants, the office of Tribal Registration has been notified by the Tribal Court that no further actions on a rejected applicant's is pending.

(B) The decision of the Tribal Court, at the conclusion of all appeals, shall be final.

SECTION 12. CITIZENSHIP CARD

(A) Upon a persons verification of citizenship in the Chickasaw Nation, said person may request and shall be issued a "Citizen of the Chickasaw Nation" citizenship card, issued by the office of Tribal Registration, which shall contain the following:

- (1) Name of Citizen and Date of Birth (if known)
- (2) The citizens District and City affiliation.
- (3) Chickasaw Blood Quantum; or, None, if none.

(4) A statement on the card in which the citizen declares his or her citizenship in the Chickasaw Nation; shows what other, if any, mixed-blood of other Indian Nations he or she has and affirming their citizenship in the Chickasaw Nation; a signature line for the citizen to sign in front of the registrar or designee for the Chickasaw Nation; and, a signature line for the Governor to sign and imprint the Seal of the Chickasaw Nation in confirmation of citizenship.

(5) The citizenship card shall bear a control number that the registrar and designees shall use to insure the integrity and validity of the citizenship card.

(6) The registrar or designee of the Chickasaw Nation shall certify, in writing, to the appropriate official of other Indian Nations the identity of a person of Indian mixed-blood who has declared his or her Chickasaw citizenship. The Indian mixed-blood Chickasaw shall counter-endorse such writing before a citizenship card is issued to such mixed-blood Chickasaw.

SECTION 13. RECORDS

(A) All records of all Chickasaw citizens and applicants are confidential and may be used, only, in accordance with official business of the Chickasaw Nation. However, such records are a matter of public record and may be viewed, but not copied, by others not acting in an official capacity of official business of the Chickasaw Nation, except the applicant or citizen who might require copies of information regarding their family ancestry.

(B) Upon receipt of appropriate documentation, the office of Tribal Registration is authorized to update the information of an applicant or citizen. The following information is deemed acceptable for documentation:

- (1) Name Change by marriage, divorce, or court decree.
- (2) Written and signed statement of applicant or citizen of a change of address.
- (3) Record of Death by Death Certificate, BIA Records, Mortuary Records, Hospital Records, Obituary Notice from a newspaper, written and signed statement from a relative (in the absence of previous stated documentation), written and signed statement from someone who attended the funeral and who can document the grave location and date of death, or by court decree.

SECTION 14. LOSS OF CITIZENSHIP

(A) Any citizen of the Chickasaw Nation, who is 18 or older, may relinquish such citizenship in writing, to the Tribal Registrar, which must be signed by the maker and notarized, or can be confirmed by the signing of two witnesses. Such relinquishment shall, normally, become effective upon acceptance by such person to citizenship or membership into another Indian tribe. However, relinquishment shall become effective before such person becomes a citizen or member of another Indian tribe, on the date that such person requests that relinquishment shall commence.

(B) A legal guardian of a minor or incompetent may request relinquish such minor's or incompetent's citizenship upon documented proof to the office of the Tribal Registration that the guardian has legal custody of the minor or the incompetent.

(C) A citizen of the Chickasaw Nation who is discovered to have been erroneously conferred citizenship in the Chickasaw Nation; or, who is determined to have accepted benefits of land or money as a member of another Indian tribe; or, if a minor or incompetent, whose parent, guardian or other sponsor has accepted benefits of land or money as a citizen of another Indian tribe; or, any other person who is discovered not eligible for citizenship in the Chickasaw Nation, pursuant to the provisions of this Act or the Constitution of the Chickasaw Nation shall be subject to revocation of citizenship in the Chickasaw Nation under the following provisions:

(1) Said citizen shall be notified by certified mail, return receipt requested, by the office of the Tribal Registration of the intent to revoke citizenship and the information that brought the action. Such notice shall include the date for the hearing which shall be no less than 30 days, and that the matter will be heard by the Tribal Court as a review panel on that date in informal session, and that such citizen may appear to show cause why

citizenship should not be revoked. Failure of the citizen to appear at the scheduled hearing shall be accepted by the review panel that such citizen shall abide by that panel's decision. The decision of the review panel shall be final.

(D) Any citizen may provide documentation to the office of Tribal Registration which brings into doubt the legitimacy of the citizenship of another. However, improperly supported documentation brought by an accuser can result, by review panel decree, the revocation of the accuser's citizenship on the basis that such accuser is an undesirable, or other sanctions that the review panel, at their discretion, may deem proper.

SECTION 15. REPEAL

Each prior law in conflict with a provision of this Act is hereby repealed.

SECTION 16. EFFECTIVE DATE

This law shall become effective on the date that it is duly adopted as law in accordance with the provisions of the Constitution and laws of the Chickasaw Nation.

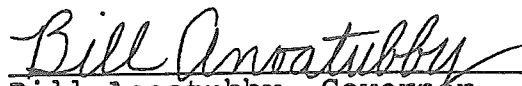
Executed in regular session of the Chickasaw Tribal Legislature at Ada, Oklahoma, on September 16, 1994, by a vote of 9 ayes, 0 nays, and 4 abstentions.


Chairperson
Chickasaw Tribal Legislature

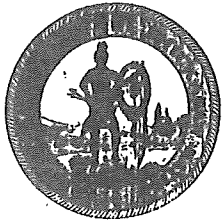

Secretary
Chickasaw Tribal Legislature

VETOED

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 16 1994



the
Chickasaw
Nation TRIBAL LEGISLATURE

Arlington at Mississippi / Box 2669 / Ada, Okla. 74820 / (405) 436-1460

MEMORANDUM

TO: The Honorable Governor Bill Anoatubby
The Chickasaw Nation

FROM: The Honorable Ron Parker, Chairperson
The Chickasaw Tribal Legislature

DATE: October 6, 1994

SUBJECT: The Citizenship Act - Work-In-Progress

Governor:

In light of the Tribal Court ruling in Case No. 94-05, Bill No. 11-013, The Chickasaw Nation Citizenship Act of 1994, became Tribal Law No. 11-014 by virtue of its receipt from your office six (6) days after it was adopted and presented to you. However, the members of the Citizenship Committee, appreciating the recent input from you and your staff regarding problems with the Act, is planning on going forward with legislation to correct those areas of the Act that came into question. Instead of a new Citizenship Bill being introduced, the work that is in progress, at this time, will be formulated into an amendment to Tribal Law No. 11-014. It is felt that this is the proper procedure for effecting the revisions to the Act that are being sought in our joint effort.

Mr. Childers has the work that was prepared by Mr. Redden. We request that Mr. Childers send over his work product to Mr. Redden by next Wednesday, October 12, 1994, so that it can be reviewed, modified to amendment format, proof-read and printed in time for presentation to the Citizenship Committee at their meeting on Monday, October 16, 1994 at 4:30 p.m. at the Chickasaw Motor Inn. Barring any foreseeable problems, we should be able to include this on the Regular Session agenda for October 21, 1994.

Thank you for your efforts in the spirit of co-operation that you have shown in the interest of the Chickasaw Nation to produce a workable Citizenship law.